

**BRECKSVILLE BROADVIEW HEIGHTS SCHOOL DISTRICT
EXTENDED SCHOOL YEAR 2019**

THIS AGREEMENT, made and entered into between Easter Seals Northern Ohio, Inc. (hereinafter referred to as “ESNO”) and Brecksville Broadview Heights School District (“School”).

I. SERVICES

Subject to the limitations set forth in this Agreement, ESNO shall provide speech services, in cooperation with the School, to certain individuals designated by the School for the term of this Agreement. ESNO may designate the person or individual who will be providing speech services (the “Therapist”). These services will be rendered by a speech-language pathologist qualified under the State of Ohio Board of Speech-Language Pathology and Audiology. The Therapist may be an employee of ESNO or individuals or entities independently under contract with ESNO to perform such services. Background checks will be performed for each Therapist.

II. TERM

This Agreement shall be for the 2019-2020 school year (approximately hours per week; days per week for the remainder of the school) unless terminated earlier pursuant to Article V herein.

III. FEES

- A. Payment by the School shall be rendered to ESNO in the following ways: \$55/hour, \$110/hour; services including screenings, evaluations, therapy, parent meetings, progress reports, IEP’s and any other services deemed necessary by the School.
- B. ESNO shall submit an invoice to the School for speech therapy rendered monthly. Such invoice shall specify the dates and hours of service rendered and description of services rendered. Additional billing specificity may be requested by the School’s Administration;
- C. The School shall remit payment within 30 days of ESNO invoice;
- D. In the event the School disputes the contents of any invoice ESNO issues to it pursuant to Section III-B hereof, the School shall so notify ESNO in writing of its dispute, including in such writing details of the disputed matters and designating those matters with which there is no dispute. In the case of disputed items, ESNO and the School shall in good faith meet to resolve the dispute with thirty (30) days of the date of the invoice. In the event the parties are unable to resolve the dispute, then they shall seek whatever legal remedies are available, or as they may otherwise agree;
- E. ESNO shall issue invoices for speech therapy only to the School. ESNO shall not issue invoices to parents, guardians, or other funding sources or otherwise seek reimbursement from such sources.

IV. INSURANCE AND INDEMNIFICATION

The School shall indemnify, defend, and hold harmless ESNO, its members, officers, directors, agents, employees, affiliates, volunteers, invitees, trustees, and all other persons or organizations cooperating in the conduct of the ESNO or the School, its programs and operations from and against any and all harm, including but not limited to any and all claims, losses, damages, liabilities, costs, expenses, judgments, causes of actions or obligations whatsoever (including all costs, and reasonable attorney fees), for or in connection with injury, death, or damage to any person or property arising out of, resulting from, or in any way connected with the negligent or wrongful acts, errors, omissions, incompetence, malfeasance and/or misfeasance of the School in the operation, maintenance, management, conduct improvement, or otherwise of School's facilities.

V. TERMINATION CLAUSE

Either party shall have the right to terminate this Agreement for any reason at any time during its term by providing thirty (30) days prior written notice to the other party.

Either party shall have the right to terminate this Agreement immediately for nonpayment of invoices or ethical misconduct according to the American Speech-Language Hearing Association guidelines.

In the event this agreement is terminated, then ESNO shall submit an invoice to School for the balance due for any speech therapy services provided.

VI. OTHER CONDITIONS

ESNO and the School will provide all reasonable and necessary facilities and equipment necessary to support this Agreement.

VII. COMPLIANCE WITH APPLICABLE RULES, REGULATIONS AND STANDARDS

The ESNO and the School agrees to comply with Title VI of the Civil Rights Act and all applicable statutes and regulations concerning the employment of disabled citizens.

The ESNO and the School shall provide services in accordance with applicable School and Administrative Policies and Procedures.

EASTER SEALS NORTHERN OHIO, INC.

Date: _____

By: _____
Sheila Dunn, President & CEO

BRECKSVILLE BROADVIEW HEIGHTS SCHOOL DISTRICT

Date: _____

By: _____

Its: _____